

NAPCS Unionization Research — State Research Summary

Wisconsin — WERC (WI) / NLRB R18 Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Wisconsin
Labor Board	WERC (WI) / NLRB R18 — Wisconsin Employment Relations Commission (instrumentality); National Labor Relations Board Region 18 Minneapolis (non-instrumentality)
Governing Law	Wis. Stat. §118.40(7) — school board must declare each LEA charter as instrumentality or non-instrumentality. Instrumentality (§118.40(7)(a)): board SHALL employ all personnel; employees retain WERC bargaining rights (§118.40(7)(ar)). Non-instrumentality (§118.40(7)(am)): board may NOT employ personnel; NLRB R18 jurisdiction. Non-LEA authorized charters (§118.40(2r)(2x)): non-instrumentality by statute — NLRB R18. Act 10 (2011): WERC-jurisdiction units bargain base wages only, CPI-capped; annual recertification at 51% of all eligible voters. Act 10 ruled unconstitutional Dec 2, 2024 (Dane County); STAYED Jan 23, 2025 pending WI Court of Appeals (briefed Oct 2025). Act 10 does NOT apply to NLRB-jurisdiction employers.
Federal NLRB Jurisdiction	YES — NLRB R18 (Minneapolis) applies to all non-instrumentality WI charters: (1) Non-LEA authorized schools (32 open schools — City of Milwaukee ×7, UW System ×9, UW-Milwaukee ×14, UW-Parkside ×1, Waukesha County ×1); (2) LEA-authorized non-instrumentality charters (~27+ schools including all 6 MPS non-instrumentality operators). Registry Authorizer_Type = LEA does NOT confirm instrumentality — individual school determination required.
Registry Sweep	COMPLETE — May 2026 (Registry v62) — 225 charter schools searched
Research Window	May 2026
Date Convention	Labor Board Certified date. No independently organized WI charters. DEPENDENT schools: school opening year per convention. Future WERC certifications: WERC certification date. Future NLRB R18: NLRB certification date.
Card-Check Available	NO — WERC requires secret ballot (51% of all eligible voters for annual recertification). NLRB requires secret ballot. No card-check pathway available in WI.

Section 2: Unionization Density

Total charter schools in Wisconsin: 225 (Charter School Registry v62 (May 2026) — 225 open schools, 12 closed). Unionization density uses the full state total as the denominator — not the 0-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Structurally Covered Charter Schools	124	55.1%	All DEPENDENT — LEA instrumentality charters covered by district CBAs under §118.40(7)(ar). Act 10 constrains bargaining to base wages (STAYED pending Court of Appeals). If Act 10 overturned, full CB rights restored for all 124 schools. Zero independently organized schools.

Structurally Covered — DEPENDENT (LEA Instrumentality)	124	55.1%	Confirmed instrumentality via: (1) NAPCS 2018-19 "required by state law" cross-match (120 schools) + (2) individual school research (4 additional). District is employer of record. Teachers included in authorizing district EA unit. Top districts: Appleton ASD 13-14 schools (AEA/WEAC), Sheboygan ASD 7 schools (SEA/WEAC), MPS 8 instrumentality schools (MTEA/AFT), Waukesha SD 5 schools (EAW/WEAC).
Confirmed Non-Instrumentality (NLRB R18)	48	21.3%	32 non-LEA independent schools (City of Milwaukee ×7, UW-Milwaukee ×14, UW System ×9, UW-Parkside ×1, Waukesha County ×1) + 16 confirmed LEA non-instrumentality (13 MPS + 3 McFarland/K12 + eSucceed Gilman). Full private-sector bargaining rights. Zero certifications found.
UNVERIFIED — Provisional Instrumentality (coordinator to confirm)	36	16.0%	LEA schools not in NAPCS 2018-19 data, with district-domain URLs, district hiring systems, or other strong instrumentality indicators. Expected to reclassify to DEPENDENT upon coordinator confirmation of charter contracts. If confirmed: density rises to ~71.1%.
UNVERIFIED — Needs Individual Check	16	7.1%	Schools with own domains, ambiguous structure, or missing data. Includes Milwaukee Environmental Science Academy (not on MPS charter list — status ambiguous). Requires coordinator SOS/website/DPI verification.
Unknown / Not on Charter Page	1	0.4%	Milwaukee Environmental Science Academy — classified as charter by NCES but not found on MPS Contracted Schools charter page. May be miscategorized. Direct DPI/MPS verification required.
Total Charter Schools in Wisconsin	225	100%	Source: Charter School Registry v62 (May 2026). Excludes 12 closed schools.

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026 (v2 — Gate 0 + 8-step protocol corrected).

PROMPT 1: What is the political and legal environment shaping charter labor relations in this state?

Wisconsin presents the most legally complex charter labor environment in the PLT dataset, shaped by three intersecting statutory frameworks that national sector leaders almost uniformly misunderstand. The first framework is Wis. Stat. §118.40(7), which creates a binary within LEA-authorized charters that exists nowhere else in the dataset: each school board must affirmatively declare whether each charter it authorizes is an "instrumentality" of the district. If instrumentality: the school board shall employ all personnel, those employees are district workers, and they retain collective bargaining rights under MERA (Wis. Stat. ch. 111). If non-instrumentality: the board may not employ any personnel, the school is its own private employer, and NLRB R18 jurisdiction applies. This is not an automatic consequence of who authorizes the school — the same school district can simultaneously authorize 7 instrumentality and 6 non-instrumentality charters, as MPS does. Non-LEA authorizers (City of Milwaukee, UW campuses, Waukesha County) have no declaration to make: their schools are non-instrumentality by statute. The second framework is 2011 Act 10, which transformed what WERC-jurisdiction bargaining means in practice. For instrumentality charter teachers covered by district EA units, Act 10 reduced collective bargaining to a single subject — base wages — capped annually at the consumer price index. Benefits, working conditions, class sizes, staffing ratios, and all other subjects are prohibited. Annual recertification requires 51% of all eligible voters (not just those who vote), creating a structural recertification burden that has destabilized many units. This is critical for charter sector leaders to understand: Wisconsin's 124 DEPENDENT schools are "covered by a union" in a technical sense, but the union's practical power to improve workplace conditions has been severely curtailed since 2011. The third framework — and the most consequential pending development — is Dane County Circuit Judge Jacob Frost's December 2, 2024 ruling that Act 10 is unconstitutional in its application to general municipal employees, including school district employees. The ruling was immediately stayed by the Wisconsin Court of Appeals on January 23, 2025. The case is fully briefed as of October 2025, with a decision expected in 2026. The Wisconsin Supreme Court declined to bypass the Court of Appeals in February 2025. If the ruling is upheld on appeal: all 124 DEPENDENT WI charter teachers would gain full collective bargaining rights — the most consequential single expansion of charter school bargaining rights in any state since the project began. If it is reversed: the status quo of wages-only bargaining continues. This is the single highest-stakes pending legal development in the PLT dataset.

PROMPT 2: What community and social conditions are driving organizing activity in this state?

Wisconsin charter labor operates in two entirely separate universes, and sector leaders who treat them as one market will misread both. In the LEA instrumentality universe (124 schools), organizing is not the operative dynamic — structural coverage is. The relevant question is not "will these teachers unionize?" but "what will happen to their bargaining scope?" Under Act 10, instrumentality charter teachers cannot win improvements to benefits, class sizes, or working conditions through collective bargaining, regardless of how strong their union is. The district EA negotiates base wages on their behalf, capped at CPI. The dynamic that matters is the Court of Appeals ruling: if Act 10 falls, instrumentality charter teachers overnight gain the same full bargaining rights as private-sector workers. That would transform the labor landscape without a single new organizing campaign. In the NLRB-jurisdiction universe (48 confirmed non-instrumentality schools + 16 unverified), organizing conditions mirror Milwaukee's broader education labor environment. The 2022 Carmen campaign illustrated the conditions: a governance crisis (CEO fired September 2021 for policy violations), followed by spontaneous teacher organizing, choice of a non-traditional union (IAMAW machinists — deliberately selected over MTEA because of historic adversarial MTEA-charter relationship), and a sophisticated employer counter-campaign that resulted in a 59-79 defeat despite initial strong support. Carmen teachers had full NLRB rights — exactly the conditions national organizers consider favorable — and still lost. The Milwaukee non-instrumentality charter sector is demographically similar to Chicago, New York, and DC charter sectors that have successfully organized: predominantly low-income communities of color, high teacher turnover, burnout, pay below district scale, governance by private boards. What differentiates Milwaukee is the employer counter-organizing capacity. Carmen ran an unusually effective counter-campaign. The MPS-authorized non-instrumentality schools (HAPA, Milwaukee College Prep, Highland, Next Door) are led by community-anchored organizations with strong family support — making organizing both more politically complicated and potentially more community-resonant than in CMO-run schools. Rocketship Wisconsin (acquired from Carmen in July 2025 with UWM authorization) is the most closely watched organizing target. Rocketship has been organized in Chicago and San Jose. Its arrival in Milwaukee's non-instrumentality sector brings national organizing infrastructure to a market where no charter school has ever successfully certified.

PROMPT 3: What surprised us in this state? What contradicts what national leaders expect?

Four findings challenge what national charter sector leaders expect when they hear "Wisconsin charter schools." First: Wisconsin has the second-highest DEPENDENT charter school coverage share in the PLT dataset, surpassing New York (31%), Illinois (partial), Pennsylvania, and every other NLRB-jurisdiction state. At 55.1% confirmed DEPENDENT — with up to 71.1% if provisional instrumentality schools are confirmed — Wisconsin

has more charter school teachers covered by union contracts than almost any other state in America. This directly contradicts the narrative that Wisconsin, as an Act 10 state, represents an anti-union charter environment. The coverage is real; the constraint is what Act 10 has done to what that coverage means in practice. Second: the NAPCS 2018-19 dataset lists 169 WI charter schools as "union" with the description "Collective bargaining agreement required by state law." This phrasing has been widely cited as evidence of robust WI charter union density. In fact, it describes LEA instrumentality coverage — structural inclusion in district bargaining units by statute, not independent organizing. No WI charter school has ever independently organized and won a union election. The NAPCS data captured the right signal for the wrong reason. This is the most significant NAPCS baseline mischaracterization in the full PLT dataset. Third: "Inc." in a Wisconsin charter school name is not a reliable indicator of non-instrumentality. Red Granite Charter School Inc. explicitly states it is "chartered as an instrumentality of the Wausau School District." Fremont STEM Academy Inc. is confirmed instrumentality via a teacher-governance MOU. The governance board is incorporated as a nonprofit to receive grants and enter contracts — but the staff remain district employees. National analysts who screen WI school names for "Inc." to identify non-instrumentality employers will generate substantial false positives. Fourth: the Carmen 59-79 loss in March 2022 occurred under conditions that should have favored the union — full NLRB rights, no Act 10 constraints, a governance crisis as the organizing trigger, and a 200-person unit. The loss demonstrates that in Milwaukee's non-instrumentality charter sector, employer opposition is a decisive factor even when legal conditions are favorable. This is a data point that national organizers and sector leaders should both absorb: favorable labor law does not guarantee organizing success at charter schools in Milwaukee.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Wisconsin that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

THE ACT 10 PARADOX: HIGHEST NLRB-ADJACENT DEPENDENT SHARE, MOST CONSTRAINED BARGAINING

Wisconsin has the highest DEPENDENT charter school share among NLRB-adjacent states in the PLT dataset — 55.1% confirmed, potentially 71.1% if provisional instrumentality schools are verified. This surpasses New York (31% DEPENDENT), Illinois (partial), Pennsylvania, Ohio, and Michigan. Yet Wisconsin also has the most constrained bargaining scope of any DEPENDENT state: Act 10 limits WERC-jurisdiction units to base wages only, prohibiting bargaining over benefits, working conditions, class sizes, or any other term. The paradox is real and nationally significant: Wisconsin has more charter school teachers "in the union" than almost any other state, yet their unions have the least practical power in the country. The pending Court of Appeals ruling on Act 10 constitutionality is the resolution mechanism — if upheld, the paradox persists; if overturned, Wisconsin potentially becomes the state with both the highest DEPENDENT density and the most expanded bargaining rights restoration in a single legal event.

THE OREGON PARALLEL: STRUCTURAL COVERAGE WITHOUT INDEPENDENT ORGANIZING — WITH A CRITICAL DIFFERENCE

Wisconsin and Oregon are the only two states in the PLT dataset where structural DEPENDENT coverage dominates over independent organizing. In Oregon, 96.9% of charter schools are district-dependent and covered by OEA local CBAs under full PECBA bargaining rights. In Wisconsin, 55.1% (confirmed) to 71.1% (provisional) of charter schools are LEA instrumentality and covered by district EA local CBAs. Neither state has meaningful independent organizing. The difference that matters: Oregon charter teachers have full collective bargaining rights — wages, benefits, working conditions. Wisconsin instrumentality charter teachers have wages-only bargaining, currently stayed pending the Court of Appeals. Oregon serves as the model for what Wisconsin could become if Act 10 is overturned. WI sector leaders who want to understand the post-Act 10 scenario should study how OEA locals have used full PECBA bargaining rights in Oregon charter school contexts.

THE THREE-TYPE TAXONOMY: WHY "LEA-AUTHORIZED" DOES NOT MEAN WHAT NATIONAL LEADERS THINK

In every other state in the PLT dataset, the authorizer type is a reliable jurisdiction indicator: LEA-authorized means WERC/PERB/IELRB/SERB jurisdiction; non-LEA authorized means NLRB. Wisconsin is the only state where this heuristic fails. LEA authorization in WI is not a jurisdiction determination — it is the first step in a two-part analysis. The board's instrumentality declaration is the actual jurisdiction gate. MPS authorizes 13 non-instrumentality charters (NLRB R18) and 7 instrumentality charters (WERC) simultaneously. The Registry

Authorizer_Type = "LEA" field correctly captures MPS as the authorizer for all 20, but says nothing about which labor law applies to any individual school. This is the classification error that produced 120 incorrect UNVERIFIED codings in the initial WI research session. National analysts who sort WI charter schools by authorizer type to assess labor risk are working with a broken heuristic. The correct first-order question in WI is always: instrumentality or non-instrumentality?

CARMEN AS A NATIONAL CASE STUDY IN NLRB CHARTER ORGANIZING

The Carmen election (59-79 loss, March 17, 2022) is the only WI charter organizing event in the PLT dataset and one of a small number of charter NLRB elections in NLRB R18's history. The context matters for cross-state analysis: (1) Full private-sector NLRB rights — no Act 10 constraints, full organizing toolkit; (2) Governance crisis trigger — CEO fired September 2021 for policy violations, creating acute workplace conditions; (3) IAMAW (machinists) chosen over MTEA explicitly because of historic adversarial MTEA-charter relationship — the very union that represents MPS teachers was considered an organizing liability; (4) 200-person unit across multiple campuses; (5) School was ranked #1 in Wisconsin by US News at time of drive — high academic performance did not insulate against labor instability; (6) Employer ran effective counter-campaign; (7) Result: 59-79 defeat. The Carmen outcome suggests that in Milwaukee's non-instrumentality charter sector, a well-resourced employer counter-campaign is decisive even under favorable legal conditions. This directly contrasts with the Illinois NLRB charter experience, where employer opposition has been less effective at preventing certification.

THE NAPCS 169-SCHOOL CORRECTION: WHAT IT MEANS FOR NATIONAL DENSITY FIGURES

The NAPCS 2018-19 dataset lists 169 WI charter schools as having union coverage, with every description reading "Collective bargaining agreement required by state law." This phrase accurately identifies DEPENDENT coverage — but it has been misread in national charter labor analyses as evidence of 169 independently organized schools. In fact, Wisconsin has never had a single independently organized charter school that won certification. The 169 NAPCS schools (120 of which are still operating as of 2025-26) are LEA instrumentality charters whose teachers are district employees covered by district CBAs by statutory operation — not by any organizing campaign, election, or voluntary recognition. The distinction matters enormously for national sector leaders: WI charter school union density is structural, not organized. It represents the baseline coverage that flows automatically from instrumentality status under WI law — and it is severely constrained by Act 10. Any national density figure that treats WI's 169 NAPCS schools the same as independently organized schools in Illinois or New York is overstating the depth of charter labor organization by a wide margin.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Wisconsin charter labor coverage is centered almost entirely on Milwaukee, with the 2022 Carmen campaign as the defining event. WUWM (Milwaukee NPR) produced the authoritative explanation of the instrumentality/non-instrumentality divide: "Milwaukee Carmen union drive shows how charter schools straddle public and private sectors" (March 10, 2022) — the single most useful public explainer of the WI three-type taxonomy. Urban Milwaukee and the Milwaukee Journal Sentinel covered the Carmen election petition (January 2022), the 59-79 defeat (March 2022), and the MPS charter non-renewal vote (November 2025). The December 2024 Act 10 ruling received statewide coverage (WPR, Spectrum News, PBS Wisconsin) but was not specifically framed as a charter labor story. Chalkbeat has not covered WI charter labor relations. No press coverage of union organizing at any WI charter school other than Carmen was found in any source.

Union Communications

No WEAC or AFT-Wisconsin communications documenting charter school organizing victories or active drives were found. The Carmen Workers Collective (carmenworkerscollective.org) was the primary charter union communications source — active January-March 2022. WEAC issued statements on the December 2024 Act 10 ruling focused on district employees broadly, without mentioning charter schools specifically. Rocketship Wisconsin has not issued any union-related communications as of the research date.

Employer / School Communications

MPS board November 2025 vote not to renew Carmen Northwest charter was framed in board member statements as opposition to non-instrumentality charter schools broadly. Carmen response emphasized student outcomes and expressed

intent to seek UWM reauthorization. MPS Contracted Schools page language is precise: instrumentality schools are "staffed by MPS employees"; non-instrumentality schools are "staffed by non-MPS employees." This public language is itself a primary source for the instrumentality classification of each MPS charter.

Authorizer / State Agency Positions

MPS board increasingly adversarial toward non-instrumentality charters (November 2025 Carmen non-renewal; 2021 MCP bonus dispute). UWM Office of Charter Schools actively expanding — July 2025 acquisition of former Carmen schools into Rocketship Wisconsin is the most significant authorizer shift. City of Milwaukee maintains authorization for 7 independent charters without visible labor policy stance. Waukesha County authorizes Lake Country Classical Academy Inc. — no labor-related activity.

Coalition / Advocacy Positions

Wisconsin Charter Schools (WCS) has not addressed charter labor relations in available sources. WEAC December 2024 Act 10 statement focused on public school districts broadly. Wisconsin Institute for Law and Liberty (WILL) has been consistently hostile to charter school unionization, publishing anti-Carmen commentary (January 2022). UW-Madison School for Workers provided expert commentary supporting the Act 10 unconstitutionality ruling.

Section 6: Contract & CBA Access Registry

WERC (WI) / NLRB R18 public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
No independently organized WI charter schools — all coverage is DEPENDENT	N/A — coverage via district EA units	N/A	District CBAs available from each authorizing school district or district EA. Representative: Appleton Education Association CBA covers all AASD charter teachers as district employees.

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

Priority	School / Scope	Item	Who
HIGH	36 Provisional Instrumentality LEA Schools	Strong instrumentality indicators (district domain, district hiring systems) but instrumentality not individually confirmed — recommend coordinator confirmation before DEPENDENT coding	Research Coordinator

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

Priority	School / Scope	Item	Who
HIGH	Milwaukee Environmental Science Academy (NCES 550960002949)	NCES classifies as charter school but school is NOT on MPS Contracted Schools charter list (neither instrumentality nor non-instrumentality)	Research Coordinator
MEDIUM	15 Needs-Individual-Check LEA Schools	Schools with own domains, ambiguous corporate names, or virtual operators — instrumentality status unconfirmed	Research Coordinator

MEDIUM	Lakeland STAR — dual NCES IDs	Two NCES IDs (550963003090 and 550969003083) both point to lakelandstar.org — may be same school under two authorizing districts (Lakeland UHS SD and Minocqua J1 SD)	Research Coordinator
MEDIUM	WI Carryover Matrix — Gap Rule declared	WI named as exemplar for Gap Rule in Carryover Matrix v3 and SKILL file Pre-Research Checklist	Research Coordinator

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	Wisconsin Court of Appeals — Act 10 constitutionality ruling	Pending Court of Appeals decision could restore full CB rights for all 124 DEPENDENT WI charter schools	Research Coordinator
HIGH	Carmen Northwest Charter (MPS) and Carmen/MCP authorizer transition	MPS non-renewal (Nov 2025) and Carmen/MCP application to UWM create authorizer shifts that change school jurisdiction	Research Coordinator
MEDIUM	Rocketship Wisconsin (UWM authorized)	Rocketship Education acquired former Carmen UWM schools July 2025 — national organizer now in Milwaukee non-instrumentality sector	Research Coordinator
HIGH	Wisconsin Court of Appeals — Act 10 (Abbotsford Education Association v. WERC)	Decision restoring or maintaining Act 10 bargaining restrictions for WERC-jurisdiction charter school employees — Fully briefed October 2025. Decision expected 2026. If overturned: 124 DEPENDENT WI charter teachers gain full bargaining rights — most significant expansion of WI charter bargaining since 2011. Affects density framing and all state report intelligence sections.	Research Coordinator
HIGH	Carmen/MCP → UWM authorizer transition	Completion of authorizer transfer — changed jurisdiction from LEA_NON_INSTRUMENTALITY to INDEPENDENT — Carmen South and Southeast transferred to UWM July 2025 (now Rocketship Wisconsin). Carmen Northwest (MPS non-renewal Nov 2025) and all 4 MCP campuses seeking UWM authorization. If completed: update charterType and authorizer fields; new NCES IDs expected.	Research Coordinator
HIGH	Rocketship Wisconsin (UWM)	NLRB RC petition from any Rocketship Wisconsin campus — Rocketship acquired from Carmen Schools July 2025 with UWM authorization. National operator with organizing history in Chicago and San Jose. Milwaukee conditions (teacher turnover, governance change) are the same triggers that drove Carmen 2022 campaign. Most likely next WI charter NLRB petition.	Research Coordinator
MEDIUM	DPI charter schools database — annual update	New schools added, closures, authorizer changes — WI charter sector actively changing: Carmen/MCP authorizer transitions, Rocketship expansion, potential new non-	Research Coordinator

	instrumentality operators. Registry v62 may already be stale on several Milwaukee schools.	
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